

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION**

Present
Mr. Justice Md. Salim
And
Mr. Justice Shahed Nuruddin

CRIMINAL MISCELLANEOUS CASE NO.4233 OF 2019

Md. Moin Ullah Chowdhury Tutul
.....Accused-Petitioner.

-VERSUS-

The State and another. ...Opposite Parties.

Mr. Abdus Salam Mamun, Advocate
..... For the petitioner.

Mr. Muhammed Arifujjaman Khan with
Mr. Md. Ashiqur Rahman, Advocate
----- For the Complainant opposite party No.1.

Mr. B.M. Abdur Rafell, DAG with
Mr. Binoy Kumar Ghosh, A.A.G.
Mr. A.T.M. Aminur Rahman (Milon), A.A.G.
Ms. Lily Rani Saha, A.A.G.
.....For the State.

Heard and Judgment on 16.11.2023.

MD. SALIM, J:

By this Rule, the opposite parties were asked to show cause as to why the proceeding of Manob Pachar Case No.5 of 2018 under Section 15 of the Manob Pachar Protirodh-O-Daman Ain, 2012, now pending before the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal No.2, Chattogram should not be quashed and or such

other or further order or orders passed as to this Court may seem fit and proper.

Material facts, in a nutshell, are that one Senoara Begum as the complainant on 21.06.2015 instituted a petition of complaint against the present petitioner and 2 others in Nari-O-Shishu Nirjatan Daman Tribunal No.2, Chattogram under Sections 6 / 7/ 10 of the Manob Pachar Protirodh-O-Daman Ain,2012 alleging sale, transfer or wrongful restraint of her daughter Taslima Akter (09) and it was recorded as the Nari-O-Shishu Nirjatan Daman Case No.473 of 2015.

Eventually, the Nari-O-Shishu Nirjatan Daman Tribunal No.3, Chattogram by an order dated 21.06.2015 dismissed the said petition of the complaint being false.

The said complainant Senoara Begum again filed another petition of complaint in the Nari-O-Shishu Nirjatan Daman Tribunal No.2, Chattogram against the petitioner and 2 others concealing the earlier case and showing the different place of occurrence on 27.06.2015 and it was recorded as Manob Pachar Case No.09 of 2015 and the Tribunal referred the said petition of complaint to

the Doublemooring Police Station started Case No.28 dated 27.06.2015 against the petitioner and 2 others under Sections 6 / 7 / 10 of the Manob Pachar Protirodh-O-Daman Ain,2012.

The case was investigated by the police and after investigation submitted a final report finding that the complainant earlier filed a case against the accused petitioner on the self same matter.

Subsequently, the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal No.2, Chattogram by the order dated 31.01.2016 accepted the final report and discharged the petitioner from the case.

Thereafter, the accused petitioner being the complainant instituted Manob Pachar Case No.10 of 2016 before the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal No.2, Chattogram under Section 15 of the Manob Pachar Protirodh-O-Daman Ain,2012 against Senoara Begum and others.

Subsequently. the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal No.2, Chattogram took cognizance of the offense against all the accused and by

the order dated 21.11.2017 framed the charge against accused Senoara Begum and discharged the accused Muhammad Salauddin Liton and other.

After the order of discharge, Muhammad Salauddin Liton as complainant instituted Manob Pachar Case No.5 of 2018 against the petitioner. Subsequently, the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal No.2, Chattogram by an order dated 03.04.2018 took cognizance of the offense against the accused petitioner under Section 15 of the Manob Pachar Protirodh-O-Daman Ain, 2012.

The accused petitioner surrendered before the tribunal. After obtaining bail the accused petitioner preferred an application under section 561A of the code of criminal procedure and obtained the Rule and order of stay.

Mr. Abdus Salam Mamun learned counsel appearing on behalf of the accused petitioner contends that since the Tribunal at the time of discharge of the complainant from the case did not mention that the case was filed by the

opposite party No.1 with the false allegation hence the case is not tenable in the eye of law.

On the contrary, Mr. Muhammed Arifujjaman Khan learned Counsel for the opposite party No.1 vehemently opposes the contention so made by the learned counsel for the petitioner and submits that the accused petitioner knowing fully filed a false criminal case against the complainant opposite party therefore the instant Rule is liable to be discharged.

We have anxiously considered the submission of learned counsel for both parties and perused the application and other related annexures annexed with the application.

It is revealed from the record that the accused petitioner as a complainant earlier preferred a Manob Pacher Case No. 10 of 2016 before the Nari-o-Shishu Nirjatan Daman Tribunal Chattagram under section 15 of the Manob Pacher Ain, 2012 against accused Senoara Begum, Md. Shamsul Alam, the present opposite party namely Md. Salauddin and two others for filing a false case against the accused petitioner.

Subsequently, the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal, Chattagram by an order dated 21.11.2017 framed the charge against the accused Senoara Begum while discharging the complainant opposite party of the instant case and others from the case.

There would, therefore be a natural presumption that the tribunal after discussing shreds of evidence could not conclude that the case filed against the complainant of the instant case was false.

In light of these circumstances, we are of the view that the allegation as contained in the petition of complaint of the Manab Pachar Case No.10 of 2016 under Section 15 of the Manab Pachar Protirodh-O-Daman Ain,2012 which was filed by the accused petitioner has yet been judicially determined that the case is false. So, the impugned proceedings suffer from legal infirmities which call for interference by this Court.

In view of the foregoing narrative, the Rule is made absolute. The proceeding of Manob Pachar Case No.5 of 2018 under Section 15 of the Manob Pachar Protirodh-O-

Daman Ain,2012, now pending before the learned Judge,
Nari-O-Shishu Nirjatan Daman Tribunal No.2,
Chattogram is hereby quashed.

The office is directed to communicate the judgment
at once.

SHAHED NURUDDIN,J

I agree

Kabir/BO